IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 107
New CA-483/2022
In
CA-(CAA)-96/ND/2022

IN THE MATTER OF:
M/s. Lucideus Tech Pvt Ltd. AND Safe Technology India Pvt Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 23.12.2022

CORAM:
SHRI ATUL CHATURVEDI
MEMBER (TECHNICAL)

SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

PRESENT:
For the Applicant : Advocate Rishabh Sachdeva
For the Respondent :

ORDER

New CA-483/2022:-

This application has been filed seeking modification in the order dated 24.11.2022 passed by this Tribunal in Company Application bearing No. CA(CAA)-96/ND/2022. Mr. Rishabh Sachdeva, Ld. Counsel for the Applicant Companies has submitted that in the said order, there are some typographical errors in the dates which have been mentioned inadvertently in Para 2 (I) and (II) as 31.03.2022 instead of 04.08.2022 which are as follows: -

2 (I) Lucidues Tech Private Limited.

(II) Safe Technology India Private Limited.

Mr. Rishabh Sachdeva, Learned Counsel appearing for the Applicant Companies submits that the said dates in the said paragraphs be mentioned as 04.08.2022 instead of 31.03.2022. We therefore direct that the following Para 1 (I) and (II) may be read as follows: -

"2 (I) Lucidues Tech Private Limited

(Transferor Company/ Applicant Company No. 1)

The Company is incorporated under the Companies Act, 1956 and is having its registered office at A-1/20 Basement Safdurjung Enclave, Delhi – 110029 and is having its CIN U72200DL2012PTC317713. The authorized share capital of the company is Rs.3,00,00,000/- and the paid up share capital is Rs.1,63,45,440/-.

*As regards, Transferor Company, as on **04.08.2022**, the Company has two Shareholders and all the Shareholders have given their consent to the Scheme and these consent affidavits are on record (283-293). There are no Secured Creditors. There are one Unsecured Creditor who has given its consent for the present Scheme (Pages 315-321).*

(II) Safe Technology India Private Limited.

(Transferee Company/Applicant Company No. 3)

The Company is incorporated under the provisions of the Companies Act, 2013 and having its registered office at A-1/20 Basement Safdurjung Enclave, Delhi – 110029 and is bearing CIN U72900DL2017PTC312605. The authorized share capital of the company is Rs.2,00,00,000/- and the paid up share capital is Rs.1,71,07,260/-.

*As regards, Transferee Company, there are two Shareholders who have given their consent for the present Scheme, which are placed on record (Pages 294-304). As on **04.08.2022**, there are no Secured Creditor. There are one Unsecured Creditor who has given its consent for the present Scheme, placed on record (Pages 322-328)."*

Ordered accordingly.

IA **allowed** to the extent indicated above.

— Sd —

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

— Sd —

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Shammy
23.12.2022